BRENDAN NGEHSI NEWANFORBI

1455 Cat Tail Drive, Stockton, CA 95204

Telephone: (209) 801-4442 Email: bnn.cdl@gmail.com

Petitioner, in propria persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area,** Respondents.	Case No. 26CV191136 **PETITIONER'S NOTICE OF LODGING OF ADMINISTRATIVE AND PRODUCED RECORD** Hon. Jenna M. Whitman, Dept. 25 Hearing: January 8, 2027, 9:00 a.m. Reservation No. 958052306492 Action filed May 29, 2026

PETITIONER'S NOTICE OF LODGING OF ADMINISTRATIVE AND PRODUCED RECORD

TO RESPONDENTS CALIFORNIA HIGHWAY PATROL AND G. SERRATO, AND TO COUNSEL OF RECORD:

Petitioner Brendan Ngehsi Newanforbi hereby lodges the following materials for use on the concurrently filed motion for a peremptory writ of mandate. Lodging identifies the record Petitioner asks the Court to consider. It does not authenticate every page by itself, does not waive objections, and does not represent that the Court has already admitted the original recording.

The April 9, 2026 request and the April 20, 2026 denial are the identified decision-time papers. Later production is lodged because it contains the incident reports, laboratory result, and recording inventory that bear on the facts the April 20 letter classified, and because Respondents' verified admissions now fix parts of that same chronology. Petitioner does not ask the Court to infer Captain Serrato's private deliberations from later-dated review memoranda.

I. Papers already on file

1. Verified Petition for Writ of Mandate and Exhibits 1--7, including the April 20, 2026 denial (Ex. 1), the April 9, 2026 request and supporting materials (Exs. 2--3), the petitioner-prepared transcript and authenticity declaration (Ex. 5), and the detention certificate (Ex. 7).

2. Order Sustaining Demurrer in Part (Aug. 29, 2026).

3. Respondents' Verified Answer dated October 12, 2026.

II. October 23, 2026 production (lodged as motion Exhibit B and related covers)

4. October 23, 2026 delivery email and service declaration (motion Exhibit A).

5. Produced CHP Form 202, DS-367, search-warrant, and laboratory packet identified as AGO 000029--000053 (motion Exhibit B). Form 202 is Case RJ68845. The walk-and-turn sentence appears on narrative page 3 of the standalone Form 202: "Walk and Turn: Newanforbi chose not to perform this test and related it was difficult." The arrest analysis on the following narrative page includes "Newanforbi's poor performance on the FST's" and cites Vehicle Code section 23152, subdivision (a), "per 40300.5 VC." Bates overlay AGO 000031--000032 is [PINPOINT UNCONFIRMED] on the merged image-stamped pages; the quoted sentences are taken from the standalone Form 202 and from `07-source-text` extraction

of that report. The produced laboratory page reports 0.073 ± 0.004 grams percent ethanol at the later collection (AGO 000034; [PINPOINT UNCONFIRMED] on the Bates overlay of the merged packet).

6. Three-page privilege log from the same production (motion Exhibit C). The log identifies withheld items, including review or interview memoranda dated May 9, 2026 (AGO 000055--000060), after the April 20 denial. Petitioner does not ask the Court to infer the contents of withheld documents or to treat later-dated memoranda as proof that no earlier review occurred.

7. Incident log for CAD/event 241101GG0064, AGO 000022--000024, including the 01:12 arrest / "1015" timing. This is corroboration of recorded event timing, not proof that camera, report, and CAD clocks are synchronized to the second.

8. Production dashcam coversheet identifying four MP4 filenames and describing two back-seat files as "no signal" due to hardware issues. The coversheet is not the native video and is not a hash verification. Petitioner does not republish any private delivery token.

III. Recording

9. Petitioner is prepared to lodge the original November 1, 2024 dashcam recording, or the produced copies identified on the coversheet, for comparison with Petition Exhibit 5. A September 8, 2026 filing confirmation reflects acceptance of a notice and declaration of lodging and rejection of a related proof of service (motion Exhibit D). That confirmation is not a ruling that the original video was admitted. The native recording, once authenticated, controls quotations and speaker identification. Bracketed stage directions in Exhibit 5 are the preparer's descriptions, not officer statements. The first-name "Joselyn" in the 00:56:43 stage direction is the preparer's error; the officers are Jose Melano and Santiago Meza-Gonzalez.

IV. Parallel federal order (also the subject of the Request for Judicial Notice)

10. June 29, 2026 order in *Newanforbi v. Serrato*, No. 4:26-cv-05953-ASK (N.D. Cal.) Dkt. 5 (motion Exhibit F; RJN-2). Lodged for the Court's convenience. Offered only as a court record of a parallel case, on the assumed-true / plausible-inference terms stated in the Request for Judicial Notice.

V. Limits

This notice does not lodge, and Petitioner does not republish, any private cloud or delivery-token locator. It does not seek admission of withheld privileged material. It does not convert a production promise into a representation that production is complete.

If the Court prefers a certified administrative record or a stipulated excerpt, Petitioner will lodge the excerpt the Court identifies.

DATED: _____

BRENDAN NGEHSI NEWANFORBI

Petitioner, In Propria Persona